



Job Aid – Elder & Vulnerable Adult Financial Exploitation (EFE)

OVERVIEW: The purpose of this job aid is to assist with identifying Elder & Vulnerable Adult Financial Exploitation (EFE) and investigating consistently. EFE is defined as the fraudulent or otherwise illegal, unauthorized or improper act that uses the resources of an elder or adult with disabilities for monetary or personal benefit, profit, or gain, or that results in depriving an elder the rightful access to, or use of, benefits, resources, belongings or assets.

Elder Adult and Vulnerable Adult

- Elder Adult – Typically individuals 60-65 years of age or older
- Vulnerable Adult - Individuals over the age of 18 who may be physically or mentally impaired.

Narrative and FCRM Guidelines

Not all victims over the age of 60 will be considered victims of EFE. Consider the following when determining if EFE should be included:

- Did age of the client/victim play a part in the suspicious activity? Even if this is a mass-marketing scam targeting others, do you think the victim was more vulnerable because of their age?
- The client/victim was targeted because of their age, such as a grand-parents scam or government imposter (social security) scam
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The following information should be included in case narrative and FCRM documentation:

- Include the client's date of birth and age at the time of the report in the narrative. This is typically included in the section that describes their relationship with ONB.
- Include the following specific language in the narrative
 - "elder financial exploitation" if the victim is over 60 years of age or
 - "vulnerable adult financial exploitation" if the victim is over 18 years of age and may be physically or mentally impaired.
- Include an explanation of why you know, suspect, or have reason to suspect the activity is suspicious.
- In FCRM, check the Vulnerable Adult Financial Abuse box on the Additional Information tab as well as the Elder Financial Exploitation box on the Suspicious Activity tab in the SAR

Report activity to Adult Protective Services

Financial institutions are required to report cases of suspected financial exploitation to adult protective agencies (names may vary by state) or law enforcement. Reporting requirements vary from state to state. Old National preference for reporting to the appropriate agency is as follows:

- Reports should be made from the Security Team. Retail associates should be directed to provide information to Security. Explain to the retail associate that this is for their protection with their customer and to ensure the bank protects our client information and complies with appropriate regulations.
- Reports may be filed online or by phone. Refer to the local (county) reporting requirements.
- Exceptions to regulatory rules and laws are in place which allow financial institutions to share information with adult protective agencies and law enforcement.
- Exceptions to reporting to Adult Protective Services Include:
 - The client has already reported the activity to Law Enforcement
 - The client understands they are a victim, may not need to notify APS
- Reports may be filed online or by phone
- REPORTING REQUIREMENTS BY STATE
 - **Illinois –**
 - **Mandated Reporter** – No; but mandatory reporters include any professional in occupations required to be licensed under the Illinois Public Accounting Act; also any person may report suspected financial exploitation to certain state agencies
 - **Reporting Contact Info- Department of aging – 866-800-1409**
 - **Indiana**
 - **Mandated Reporter** – No; but mandatory reporters include any professional in occupations required to be licensed under the Illinois Public Accounting Act; also any person may report suspected financial exploitation to certain state agencies
 - **Reporting Contact Info** – Indiana Securities Commissioner and Adult Protective Services
Telephone Number – 1-866-552-4464
Email Address – SeniorProtection@sos.in.gov
Online Reporting
 - **Kentucky -**
 - **Mandated Reporter** – Yes; any person with reasonable cause to suspect abuse shall report
 - **Transactional Hold or Delayed Disbursement** –
 - **Reporting Contact Info** – Cabinet for Health and Family Services
 - **Telephone Number** – 1-877-597-2331
 - **Michigan**
 - **Mandated Reporter** – No; Financial Service Professionals not mandated by statute
 - **Transactional Hold or Delayed Disbursement** – No
 - **Reporting Contact Info** – Department of Human Services
 - **Telephone Number** – 1-855-444-3911
 - **Minnesota**
 - **Mandated Reporter** – No; but Financial Services Professionals may report suspected financial exploitation to certain state officials and third-parties

- **Transactional Hold or Delayed Disbursement** – 15 business days
- **Reporting Contact Info** – Department of Human Services
- **Telephone Number** – 1-800-882-6262
- **Email Address** – DHS.AdultProtection@state.mn.us
- **Ohio.**
 - **Mandated Reporter** – Yes; investment advisers, financial planners, CPAs; employees of banks/credit unions are mandatory reporters – effective 9/29/18
 - **Transactional Hold or Delayed Disbursement** – No
 - **Reporting Contact Info** – County Department of Job and Family Services
 - **Telephone Number** – 1-855-644-6277
- **Wisconsin**
 - **Mandated Reporter** – No; Financial Service Professionals not mandated by statute
 - **Transactional Hold or Delayed Disbursement** – No
 - **Reporting Contact Info** – Department of Health and Human Services
Online Reporting

Red Flags

- Sudden negative or low account balance
- Transactions that appear to benefit POA or JOO. (i.e. Another individual's name listed on ACH transactions)
- Multiple, frequent checks written to one individual
- Large or frequent cash withdrawals at a banking center or ATM, including daily maximum withdrawals at ATM
- Atypical wire activity
- Uncharacteristic Western Union or money order purchases
- Suspicious or inconsistent debit card activity that may indicate the individual is not in possession of their card
- Banking center reports one individual brings client to banking center frequently to withdraw cash
- Closing of CDs or accounts without regard to penalties
- Uncharacteristic nonpayment for services, which may indicate a loss of funds or access to funds
- Elder reluctant to discuss financial matters

Best Practices

- Contact the owning banking center or the banking center the client frequents for more information on the client/situation
- Contact joint owners or POA if they are not involved in the suspicious activity
- Contact APS and/or law enforcement. If the situation is urgent, call to file the report. If it is not urgent, a report may be filed online. Note: if the EFE box is checked in FCRM, the EFE box should be checked in the SAR report.
- Add cautions to accounts if applicable and in CSS.

View and save ATM video, if available, to determine if client is in possession of their debit card.
If they are not, warm status the card.

REVISION LOG	Prepared by/Date	Approved by/Date
New Job Aid	Heather Roedel	DMH 2/6/2020
Reviewed – minor wording revisions		DMH 11/27/2022